



SPONSOR: Rep. K. Williams & Rep. Heffernan & Sen. Walsh
Reps. Chukwuocha, Osienski, Michael Smith, Ortega;
Sens. Cruce, Hansen, Hoffner, Mantzavinos, Richardson,
Lockman, Poore

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 159

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO SCHOOL PROPERTY TAX
EXEMPTIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1902, Title 14 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1902. Power of district to levy taxes for school purposes.

4 (a) Any district may, in addition to the amounts apportioned to it by the Department of Education or appropriated
5 to it by the General Assembly, levy and collect additional taxes for school purposes upon the assessed value of all taxable
6 real estate in the district, except any of the following:

7 (3) Real estate exempt from taxation under a county ordinance adopted on or before January 1, 1998, granting,
8 clarifying, or expanding any exemption from county taxation. Upon a county-wide reassessment under § 8306(b) of
9 Title 9, a county shall, by subsequent county ordinance, modify these exemption amounts.

SYNOPSIS

This Act gives a county, upon a county-wide reassessment of real property under § 8306(b) of Title 9, the authority to adopt an ordinance modifying the school property tax exemption amounts that were put in place on or before January 1, 1998. In doing so, this Act protects seniors and individuals with disabilities from significant school tax increases related to county-wide reassessments of property values.